

SUMMARY: On September 27, 2004, the Enforcement Bureau of the Federal Communications Commission (Commission) released a Hearing Designation Order (HDO) initiating a hearing to determine whether Gulf Power Company (Gulf Power) is entitled to receive compensation above marginal cost for any attachments to its utility poles belonging to Florida Cable Telecommunications Association; Comcast Cablevision of Panama City, Inc.; Mediacom Southeast, L.L.C.; and Cox Communications Gulf Coast, L.L.C. (collectively, Cable Operators). To avail themselves of the opportunity to participate in this hearing, the parties were required to file a written Notice of Appearance with the Office of the Commission Secretary, stating an intention to appear on the date fixed for the hearing and present evidence on the issues specified in the HDO, within 20 days of the mailing of the HDO to the parties.

DATES: The HDO was mailed to the parties on September 27, 2004. The parties were required to file their Notices of Appearance by October 18, 2004.

ADDRESSES: Federal Communications Commission, 445 12th Street, SW., Room TW-204(B), Washington, DC 20554.

FOR FURTHER INFORMATION CONTACT: Rhonda J. Lien, 202-418-7330.

SUPPLEMENTARY INFORMATION: The Enforcement Bureau previously ruled that Gulf Power violated section 224 of the Act, 47 U.S.C. 224, and the Commission's pole attachment rules, 47 CFR 1.1401-1.1418, by charging the Cable Operators rates higher than those allowed by the Commission's rules and policies and by refusing to negotiate new rates in good faith. *See Florida Cable Telecommunications Association, Inc.; Comcast Cablevision of Panama City, Inc.; Mediacom Southeast, L.L.C.; and Cox Communications Gulf Coast L.L.C. v. Gulf Power Company*, Memorandum Opinion and Order, 18 FCC Rcd 9599 (Enf. Bur. 2003). Gulf Power timely filed a Petition for Reconsideration and Request for Evidentiary Hearing on June 23, 2003.

The complete text of this HDO is available for inspection and copying during normal business hours in the FCC Reference Information Center, Portals II, 445 12th Street, SW., Room CY-A257, Washington, DC 20554. This document may also be purchased from the Commission's duplicating contractor, Best Copy and Printing, Inc. (BCPI), Portals II, 445 12th Street, SW., Room CY-B402, Washington, DC 20554,

telephone 202-863-2893, facsimile 202-863-2898, or via e-mail at <http://www.bcpweb.com>.

Federal Communications Commission.

Christopher N. Olsen,

Deputy Chief, Enforcement Bureau.

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FEDERAL MARITIME COMMISSION

[Petition No. P6-04]

Petition of China Shipping Container Lines (Hong Kong) Co., Ltd., for an Exemption From the First Sentence of Section 9(c) of the Shipping Act; Notice of Filing

Notice is hereby given that China Shipping Container Lines (Hong Kong) Co., Ltd. ("Petitioner"), a controlled carrier as that term is defined by the Shipping Act of 1984, has petitioned, pursuant to section 16 of the Shipping Act of 1984, 46 U.S.C. app. 1715, and 46 CFR 502.69, for an exemption from the first sentence of section 9(c) of the 1984 Act, 46 U.S.C. app. 1708(c).¹ Petitioner seeks an exemption so that it may reduce its tariff rates upon publication.²

In order for the Commission to make a thorough evaluation of the Petition, interested persons are requested to submit views or arguments in reply to the Petition no later than December 6, 2004. Replies shall consist of an original and 15 copies, be directed to the Secretary, Federal Maritime Commission, 800 North Capitol Street, NW., Washington, DC 20573-0001, and be served on Petitioner's counsel, Brett M. Esber, Esq., Blank Rome LLP, Watergate 600 New Hampshire Avenue, NW., Washington, DC 20037. It is also requested that a copy of the reply be submitted in electronic form (WordPerfect, Word or ASCII) on diskette or e-mailed to Secretary@fmc.gov.

Copies of the petition are available at the Office of the Secretary of the Commission, 800 N. Capitol Street, NW., Room 1046. A copy may also be obtained by sending a request to secretary@fmc.gov or by calling (202)

¹ China Shipping Container Lines (Hong Kong) Co., Ltd. is a wholly owned subsidiary of China Shipping Container Lines Co. Ltd. ("CSCL"). On April 1, 2004 the Commission issued an Order in Petition No. P4-03, granting CSCL an exemption like that now sought by Petitioner—an exemption from the first sentence of section 9(c) of the 1984 Act.

² The Petitioner, to date, has operated only outside of the United States' trades. Petitioner advises that it will commence operations in the U.S. trades on or about January 1, 2005.

523-5725. Parties participating in this proceeding may elect to receive service of the Commission's issuances in this proceeding through e-mail in lieu of service by U.S. mail. A party opting for electronic service shall advise the Office of the Secretary in writing and provide an e-mail address where service can be made. Such request may be directed to secretary@fmc.gov.

Bryant L. VanBrakle,

Secretary.

[FR Doc. 04-25770 Filed 11-19-04; 8:45 am]

BILLING CODE 6730-01-P

FEDERAL RESERVE SYSTEM

Agency Information Collection Activities: Proposed Collection; Comment Request

AGENCY: Board of Governors of the Federal Reserve System

SUMMARY: June 15, 1984, the Office of Management and Budget (OMB) delegated to the Board of Governors of the Federal Reserve System (Board) its approval authority under the Paperwork Reduction Act, as per 5 CFR 1320.16, to approve of and assign OMB control numbers to collection of information requests and requirements conducted or sponsored by the Board under conditions set forth in 5 CFR 1320 Appendix A.1. Board-approved collections of information are incorporated into the official OMB inventory of currently approved collections of information. Copies of the OMB 83-Is and supporting statements and approved collection of information instruments are placed into OMB's public docket files. The Federal Reserve may not conduct or sponsor, and the respondent is not required to respond to, an information collection that has been extended, revised, or implemented on or after October 1, 1995, unless it displays a currently valid OMB control number.

Request for comment on information collection proposal

The following information collection, which is being handled under this delegated authority, has received initial Board approval and is hereby published for comment. At the end of the comment period, the proposed information collection, along with an analysis of comments and recommendations received, will be submitted to the Board for final approval under OMB delegated authority. Comments are invited on the following:

a. whether the proposed collection of information is necessary for the proper